



ACLU National Survey

Fielded October 5 -October 11, 2017
Among 1,003 Americans nationwide

Screener Questions

Q1. Are you 18 years or older? (*n=1003*)

Yes	100
No	0
Don't know	0

Q2. In general, would you say things in the country are generally headed in the right direction or have they gotten off on the wrong track? (*n=1003*)

Right direction	24
Wrong track	67
Don't Know	9

Favorability

Now I am going to read you a list of people and organizations. After I read each one, please tell me if you have a very favorable view of them, somewhat favorable view, somewhat unfavorable view or very unfavorable view of them. If you haven't heard of them or are unfamiliar with them, just tell me that.

	Very Fav	Smwt Fav	Smwt Unfav	Very Unfav	Heard Of/No Opinion	Have Not Heard of	Don't know	TOTAL FAVORABLE	TOTAL UNFAVORABLE	TOTAL UNFAMILIAR
Q3. Donald Trump (n=1003)	23	19	13	41	3	0	1	42	54	4
Q5. The American Civil Liberties Union or the ACLU (n=507)	19	27	11	11	13	18	2	46	21	33
Q4. Jeff Sessions (n=496)	11	12	9	21	12	31	4	23	30	47

Criminal Justice Attitudes

Now you're going to hear some questions about some different topics in your area.

- Q6.** How much do you worry about crime and safety in the area where you live?
Do you worry... about crime and safety in your area? (*n*=1003)

A great deal	11
Some	29
Not very much	43
Not at all	17
Don't know	0
GREAT DEAL/SOME	40
NOT MUCH/NOT AT ALL	60

- Q7.** Thinking about the area where you live, do you think there is... compared to 5 years ago? (*n*=1003)

More crime	34
Less crime	15
About the same amount of crime	48
Don't know	3

- Q8.** Would you say that the criminal justice system in the United States.... (*n*=1003)

Has serious problems that need to be addressed immediately	55
Has some problems that need to be addressed eventually	36
Is working well	7
Don't know	1

- Q9.** In your opinion, how important is it to reduce the number of people who are in prison in America today? (*n*=1003)

Very important	38
Somewhat important	33
Not very important	9
Not important at all	16
Don't know	4
IMPORTANT	71
NOT IMPORTANT	25

Q10. In your view, would making reforms that reduce the prison population...
(n=1003)

Harm communities because people who belong behind bars will be let out	34
Help communities by saving taxpayer dollars that can be reinvested into preventing crime and rehabilitating people convicted of crimes	59
Don't Know	7

Q11. If you knew that making reforms that reduce the prison population would mean shortening prison sentences for certain people convicted of crimes, do you think it would... (n=496)

Harm communities because people who belong behind bars will be let out	39
Help communities by saving taxpayer dollars that can be reinvested into preventing crime and rehabilitating people convicted of crimes	51
Don't Know	10

Q12. If you knew that making reforms that reduce the prison population would mean sending some people convicted of crimes to rehabilitation programs to help them cope with mental illness or addictions instead of sending them to prisons, do you think it would... (n=507)

Harm communities because people who belong behind bars will be let out	23
Help communities by saving taxpayer dollars that can be reinvested into preventing crime and rehabilitating people convicted of crimes	73
Don't Know	4

Q13. Which statement do you agree with more? (n=496)

Some people say people who have committed serious crimes are unlikely to change and will almost always be a danger to society.	32
Other people say people who have committed serious crimes can turn their lives around and live productive responsible lives with the right kind of help.	62
Don't Know	6

Q14. Which statement do you agree with more? (n=507)

Some people say people who have committed violent crimes are unlikely to change and will almost always be a danger to society.	35
Other people say people who have committed violent crimes can turn their lives around and live productive responsible lives with the right kind of help.	61
Don't Know	4

Q15. Which of the following would do more to prevent people convicted of crimes from committing further offenses once they're released from prison? (*n=1003*)

Making prison as hard and unpleasant as possible so they are afraid of going back	25
Providing rehabilitation services and training so they can re-enter society and be productive citizens	72
Don't Know	3

Attitudes

Next, I'm going to read you a list of statements that someone could make. After each one, please tell me if you agree or disagree with that statement.

	Str Agree	Smwt Agree	Smwt Disagree	Str Disagree	Don't know	AGREE	DIS- AGREE
Mental Health							
Q20. People with mental health disabilities don't belong in prison, they belong in mental health programs where they can get the treatment they need from professionals. (n=332)	65	19	9	4	4	84	12
Q21. Even if people with mental health disabilities commit serious crimes, communities will be safer if they're sent to mental health programs where they can get the treatment they need from professionals. (n=339)	59	30	2	6	2	90	8
Q22. Even if people with mental health disabilities commit crimes that involve violence, communities will be safer if they're sent to mental health programs where they can get the treatment they need from professionals. (n=332)	47	40	9	4	0	87	13
Addiction							
Q17. People with drug addictions don't belong in prison, they should be in rehabilitation programs where they can recover from their addiction. (n=233)	49	27	11	11	2	75	23
Q16. People with drug addictions don't belong in prison, they should be in rehabilitation programs where they can get the treatment they need and recover from their addiction. (n=263)	49	25	12	12	2	74	24
Q19. Even if people with drug addictions have committed serious crimes, communities will be safer if they're sent to drug rehabilitation programs where they can get the treatment they need and recover from their addiction. (n=258)	37	44	13	5	1	81	18
Q18. Even if they've committed serious crimes, people with drug addictions don't belong in prison, they should be in rehabilitation programs where they can get the treatment they need and recover from their addiction. (n=249)	36	25	17	21	2	61	38
Long Sentences							
Q29. Sending people with drug addictions to prison for a long sentence, instead of drug rehab, can make a community less safe because we're not addressing the root cause of their crime and they're hardened by the experience and come out likely to commit more serious crimes. (n=258)	45	30	15	9	2	75	24
Q26. Sending someone to prison for a long sentence increases the chances that he or she will commit another crime when they get out, because prison	40	31	14	10	4	71	24

doesn't do a good job of rehabilitating problems like drug addiction and mental illness. (n=263)

Q28. Sending people to prison for a long sentence can make a community less safe because people are hardened by the experience. (n=249)	15	36	27	20	3	51	46
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Q27. Sending someone to prison for a long sentence increases the chances that he or she will commit another crime when they get out, because they're likely to be hardened by the experience and come out likely to commit more serious crimes. (n=233)	17	24	33	18	8	41	51
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Type of Reform

Q30. It's a waste of taxpayer dollars and criminal justice resources to keep people locked up who no longer pose a threat to public safety. (n=263)	44	35	9	10	2	79	19
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Q33. It's a waste of taxpayer dollars and criminal justice resources to keep people locked up who have taken responsibility for their behavior, rehabilitated themselves and could be playing a productive role in communities. (n=258)	35	40	18	7	1	75	24
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Q31. It's a waste of taxpayer dollars and criminal justice resources to keep people locked up who are older and no longer pose a threat to public safety. (n=233)	25	32	24	17	2	57	41
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Q32. It's a waste of taxpayer dollars and criminal justice resources to keep people locked up who have grown out of the age when they're most likely to commit crimes and no longer pose a threat to public safety. (n=249)	17	44	20	13	7	61	32
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Fairness

Q24. People of color are incarcerated at higher rates than white Americans because of racism in policing, prosecution, and sentencing. (n=249)	35	19	11	31	3	55	42
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Q25. People of color are incarcerated at higher rates than white Americans because of bias in policing, prosecution, and sentencing. (n=258)	31	22	20	25	3	52	45
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Q23. Black people are treated fairly by the criminal justice system. (n=233)	16	18	25	37	4	33	62
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Other

Q34. Our criminal justice system needs to be rooted in our values and our faith and preserve the principle that no one is beyond the possibility of repentance, forgiveness, and redemption. (n=1003)	32	36	18	10	4	68	28
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Q35. Offering prisoners benefits like free education is disrespectful to victims of crime who might still be suffering. (n=1003)	16	23	30	28	3	39	58
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Q36. The vast majority of people convicted of crimes will never change and it's not worth the time and money we spend to try to rehabilitate them. (n=1003)	11	12	35	41	2	23	76
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Impact on Vote

Now I'm going to read you some suggestions that some people have made for how to reform the criminal justice system. After each one, please tell me whether you would be more or less likely to vote for one of your elected officials if he or she supported this idea. If one of your elected officials were to support this idea, would you be...

	Much More Likely To Vote	Smwt More Likely	Smwt Less Likely	Much Less Likely To Vote	No Impact	Don't know	TOTAL MORE LIKELY	TOTAL LESS LIKELY	NO IMPACT/DK
Q40. Reduce the prison population and use the cost savings to reinvest in drug treatment and mental health programs. <i>(n=339)</i>	41	27	11	15	4	2	68	26	6
Q39. Reduce the prison population and use the cost savings to reinvest in community programs that have been shown to prevent crime. <i>(n=332)</i>	39	35	13	9	2	2	74	22	4
Q37. More funding for drug treatment programs to rehabilitate people who have committed a crime. <i>(n=496)</i>	37	37	10	11	3	3	73	21	6
Q46. Eliminate mandatory sentences that take discretion away from judges so that judges can issue a sentence that is appropriate to each crime. <i>(n=496)</i>	37	35	12	10	4	2	72	22	5
Q38. More funding for mental health programs to rehabilitate people who have committed a crime. <i>(n=507)</i>	36	38	16	6	3	2	73	21	5
Q41. Reduce sentences and use the cost savings to reinvest in community programs that have been shown to prevent crime. <i>(n=332)</i>	35	39	15	8	3	1	73	23	4
Q49. Repeal the requirement that people sentenced to prison serve at least 85 percent of their time behind bars before being eligible for release, and allow them to earn earlier transitions to community-based supervision if they accept responsibility, make amends for their crime, and participate in rehabilitation programs. <i>(n=339)</i>	35	35	8	12	6	3	71	20	9
Q45. Expand the options for early release to incarcerated people who can show they have been rehabilitated through drug treatment or mental health services. <i>(n=507)</i>	34	44	12	3	5	2	78	15	7
Q43. Reduce the prison population by diverting offenders into proven rehabilitation programs that address the root causes of violent behavior. <i>(n=507)</i>	33	35	16	11	4	2	68	27	6
Q47. Eliminate mandatory sentences and return to allowing judges to decide sentences, on a case-by-case basis. <i>(n=507)</i>	32	36	14	12	4	1	69	26	5

Q50. Repeal the requirement that people sentenced to prison serve at least 85 percent of their time behind bars before being eligible for release, and allow them to earn earlier opportunities to return home to their families if they accept responsibility, make amends for their crime, and participate in rehabilitation programs. (n=332)	27	45	14	10	3	2	72	24	5
Q48. Allow parole boards to use their discretion to decide which people in prison need to serve the maximum possible length of their sentences and who can be released if they are no longer a danger to society. (n=332)	25	47	11	8	7	3	71	19	10
Q44. Allow more incarcerated people, even those convicted of serious crimes who show they can be rehabilitated, to be eligible for reduced sentences for completing drug treatment, rehabilitation, education, or job training programs. (n=496)	24	43	15	14	3	1	67	29	5
Q42. Reduce the prison population by increasing the use of restitution such as financial compensation to victims, instead of prison terms. (n=496)	9	25	24	32	5	4	34	56	10

Demographics

Age. May I ask how old you are? (*n*=1003)

18 to 24 years	13
25 to 29 years	8
30 to 34 years	10
35 to 39 years	9
40 to 44 years	6
45 to 49 years	9
50 to 54 years	7
55 to 59 years	9
60 to 64 years	10
65 to 69 years	5
70 to 74 years	4
75 to 79 years	4
80 or older	6
Don't know/Refused	0

Edu. What is the last grade or level of school you have completed? (*n*=1003)

Less than high school degree	4
High school graduate	28
Some college - but less than two years of college	16
Some college - two years or more/AA degree	25
College graduate/bachelor's degree/BA/BS	17
Postgraduate courses	1
Master's degree	6
MBA or Law degree	1
PhD or MD	1
Don't know/None specified	0

Marital. Are you married, separated, divorced, widowed, not married but living with a partner, or have you never been married? (*n*=1003)

Married	52
Separated/divorced	9
Widowed	6
Not married, living with partner	7
Never married/single	25
Don't know/Refused	1

USR. Do you live in a city, a suburb just outside a city, or a less developed or rural area that is not near a city? (*n=1003*)

City	26
Suburb	53
More rural, less developed	21
Don't know	0

Ideology. Do you generally consider yourself...? (*n=1003*)

Very liberal	12
Somewhat liberal	19
Moderate	23
Somewhat conservative	27
Very conservative	14
Don't know/None specified	5

Party. Regardless of how you are registered, do you consider yourself a strong Democrat, a weak Democrat, a strong Republican, a weak Republican, or an Independent? (*n=1003*)

Strong Democrat	23
Weak Democrat	10
Strong Republican	16
Weak Republican	12
Independent	36
Other	1
Don't know	2
DEMOCRAT	33
REPUBLICAN	28
INDEPENDENT	39

Income. For statistical purposes only, we need to know your total family income for 2016. Will you please tell me which of the following categories best represents your total family income? (*n=1003*)

Less than 30 thousand	18
30 thousand to less than 50	21
50 thousand to less than 75	16
75 thousand to less than 100	17
100 thousand to less than 150	11
150 thousand or more	8
Don't know/Refused	9

Ethnicity. Which of the following ethnic groups describes you? You can stop me when I've read your group. (n=1003)

White or Caucasian	65
Black or African-American	12
Latino, Hispanic or Mexican	15
Asian or Pacific Islander	2
Native American	1
Mixed Race	4
Other	0
Don't know/Refused	2

Gender. Do you consider yourself to be... (n=1003)

Male	50
Female	50